

Terms of Service

Effective date: July 28, 2026 · Version 2026-07-28

These Terms of Service ("Terms") are a binding agreement between you and GamerGain ("GamerGain," "we," "us"). They govern your access to and use of the GamerGain website, progressive web app, and mobile applications (together, the "Service"). By creating an account or using the Service, you agree to these Terms. If you do not agree, do not use the Service.

This document is a plain-language template describing how the Service operates today. It is not legal advice. Have qualified counsel review it against the laws of every jurisdiction in which you operate before you rely on it.

1. Eligibility

You must be at least **18 years old** to use the Service. The Service involves earning and spending value and is not directed to children. By using the Service you represent that you are 18 or older, can form a binding contract, and are not barred from using the Service under applicable law.

2. Accounts

You are responsible for the accuracy of your registration information and for all activity under your account. Keep your credentials confidential. Notify us promptly of any unauthorized use. One person may hold one account unless we expressly permit otherwise; duplicate or fraudulent accounts may be suspended.

3. Points and the closed-loop economy

The Service uses **points**, an on-platform unit of value. Within a given market, **1 point equals one cent of that market's local currency** for the purpose of pricing items inside the Service. Points: - are earned by completing eligible activities (such as surveys, offers, and other tasks) subject to daily earning limits and anti-fraud review; - can be spent inside the Service (for example, in the store and marketplace and on perks); - have **no cash value outside the Service** and are **not redeemable for cash** unless and until we expressly enable a cash-out feature, which is subject to identity, tax, and regulatory requirements; - may be adjusted, withheld, or reversed where we reasonably determine they were earned through fraud, error, abuse, or violation of these Terms. Points are a limited, revocable license to use a feature of the Service; they are not your property, bank deposit, stored-value instrument, or security.

4. Earning activities and third-party offers

Some earning activities are provided by third parties (for example, survey and offer providers). Your completion of those activities is also subject to the third party's rules, and rewards may be withheld if the third party reports the activity as incomplete, duplicated, or fraudulent. We do not control and are not responsible for third-party content or determinations.

5. Marketplace

The Service includes a marketplace with three kinds of listings: - **Platform catalog** — original products offered by GamerGain and handled through our AI-managed order process; - **Member listings** — items listed by other users, who are responsible for shipping and for the accuracy of their listings; - **Affiliate listings and product search** — links to real products sold and fulfilled by third-party retailers. Where a link is an affiliate link, we may earn a commission; such links are disclosed. You may buy eligible items with points or, where enabled, by card (a platform markup may apply to card purchases). For member listings, the seller ships the item and the transaction runs through our AI-managed fulfillment process. You may not list prohibited or regulated items (including weapons, drugs, counterfeit goods, and other items we or the law prohibit). We may remove listings and cancel orders that violate these Terms or applicable law.

6. Payments

Where card payments are enabled, they are processed by a third-party payment processor; you authorize the applicable charge, including any disclosed markup. We do not store full card numbers. You are responsible for any taxes associated with your transactions except where we are required to collect them.

7. Acceptable use

You agree not to: violate any law; commit fraud or manipulate earning, referral, or contest mechanics; use bots, scripts, or automated means to interact with the Service except as expressly permitted; interfere with or attempt to breach the security of the Service; infringe others' intellectual property or privacy; upload unlawful, harmful, or infringing content; or misrepresent your identity or country.

8. Content and intellectual property

The Service, including its original catalog listings, generated images, taxonomy, text, and software, is owned by GamerGain or its licensors and is protected by intellectual-property laws. We grant you a limited, revocable, non-exclusive, non-transferable license to use the Service for its intended purpose. Content you submit remains yours, but you grant us a license to host, display, and use it to operate and improve the Service.

9. AI features and automated decisioning

The Service uses artificial intelligence to generate catalog content and imagery, personalize recommendations, power an assistant, test changes before release, and optimize non-sensitive settings. Automated systems help operate the Service, but material decisions affecting money, compliance, and safety remain subject to human oversight and guardrails.

10. Data

Your use of the Service is subject to our Privacy Policy, which explains what we collect (including behavioral data used to improve the Service) and the controls available to you, including opting out of

behavioral recording, exporting your data, and deleting your account.

11. Prohibited and regulated jurisdictions; sweepstakes/contests

Certain features may be unavailable in certain jurisdictions. Any contests, sweepstakes, or prize promotions are void where prohibited and are subject to their own posted rules and to registration or bonding requirements where applicable.

12. Suspension and termination

We may suspend or terminate your access at any time for violation of these Terms, suspected fraud, or to comply with law or protect the Service and its users. You may stop using the Service and delete your account at any time. Points and access do not survive termination except as required by law.

13. Disclaimers

The Service is provided “as is” and “as available” without warranties of any kind, to the fullest extent permitted by law. We do not warrant that the Service will be uninterrupted, error-free, or secure, or that any particular amount of points, earnings, or results can be achieved.

14. Limitation of liability

To the fullest extent permitted by law, GamerGain will not be liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits or lost points, arising from your use of the Service. Our total liability for any claim relating to the Service will not exceed the greater of the amount you paid us in the twelve months before the claim or USD 100.

15. Indemnification

You agree to indemnify and hold GamerGain harmless from claims and expenses arising out of your use of the Service, your content, or your violation of these Terms or applicable law.

16. Changes

We may update these Terms. When we do, we will update the effective date and, for material changes, take reasonable steps to notify you (which may include requiring re-acceptance). Continued use after changes take effect constitutes acceptance.

17. Governing law and disputes

These Terms are governed by the laws of the jurisdiction in which GamerGain is established, without regard to conflict-of-laws rules. The specific governing law, venue, and any arbitration or class-action terms must be finalized with counsel and inserted here before launch.

18. Contact

Questions about these Terms: **[insert support email]**.